

CV-26-003003 BARNES, KRISTY vs MSL COMMUNITY MANAGEMENT LLC – Defendant MSL Community Management LLC’s Motion to Compel Arbitration and to Stay Civil Action - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2027-04-30

Motion: The motion to compel arbitration and stay the instant action is GRANTED. The Court will modify and sign the proposed order. The parties signed a pre-dispute arbitration agreement that falls within the scope of the Federal Arbitration Act, 9 U.S.C. § 2. Plaintiffs contend that the arbitration agreement is not enforceable under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (“EFAA”), 9 U.S.C. §§ 401-402, because Plaintiffs have alleged conduct that constitutes sexual harassment under California law. The arbitration agreement itself states that it does not apply to sexual assault and sexual harassment disputes as defined by the EFAA. Under California law regarding employers, “ ‘harassment’ because of sex includes sexual harassment, gender harassment, and harassment based on pregnancy, childbirth, or related medical conditions. Sexually harassing conduct need not be motivated by sexual desire.” (Gov. Code, § 12940(j)(4)(C).) The California Supreme Court has explained “that ‘harassment consists of a type of conduct not necessary for performance of a supervisory job. Instead, harassment consists of conduct outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives. Harassment is not conduct of a type necessary for management of the employer’s business or performance of the supervisory employee’s job. [Citations.]” (Reno v. Baird (1998) 18 Cal.4th 640, 645–646.) Here, the conduct alleged in the First Amended Complaint amounts to conduct necessary to performance of a supervisor’s job, which constitutes discrimination rather than harassment. Plaintiffs alleged that their work performance and attendance was more closely scrutinized after disclosing their pregnancies, which could amount to discrimination. As Defendant accurately observes, the harassment does not constitute a severe and pervasive pattern. Plaintiffs’ allegations are distinguishable from the cases Plaintiffs cite. Here, there are no allegations of sexual favoritism nor repeated comments, mockery, or demeaning statements that created a hostile work environment. (E.g., Quilala v. Securitas Security Services USA, Inc. (2025) 117 Cal.App.5th 75, 86.) Nor are there allegations of sexist, unsupported criticisms or attempts to freeze Plaintiffs out of the ability to perform their work. (E.g., Ding v. Structure Therapeutics, Inc., NASDAQ (9th Cir., Aug. 19, 2026, No. 25-1532) 2026 WL 2420555, at *7.) All future dates are vacated and the matter is set for Case Status Review on April 9, 2027 at 8:30 a.m. in Dept. 21. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

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